

HOUSE BILL 2009

By Lafferty

AN ACT to amend Tennessee Code Annotated, Title 4,
Chapter 3 and Title 54, relative to highway traffic
noise.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 54, Chapter 1, Part 1, is amended by
adding the following as a new section:

(a) A county or municipality, by resolution of its legislative body, may request the
department of transportation conduct a highway traffic noise study for residential
properties located along the sound propagation path of a state highway, including a state
highway that is part of the interstate and national defense highway system, if:

(1) A tree zone has been removed, cut, or cleared behind the residential
properties for purposes unrelated to construction of a state highway or physical
alteration of an existing state highway; and

(2) There is no existing shielding or noise barrier.

(b) As used in this section:

(1) "Noise barrier" means a physical obstruction that is constructed
between a state highway and residential properties that lowers the highway traffic
noise level, including stand-alone noise walls, noise berms, whether earth or
other material, or a combination of such berm and wall systems;

(2) "Shielding" means a man-made or natural structure or barrier that
provides an auditory barrier between residential properties and a state highway,
including the top of a cut or an intervening hill; and

(3) "Tree zone" means a region of woods and undergrowth or several rows of trees that are sufficiently dense to completely or substantially block the view along the sound propagation path of a state highway.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.